

Tamil Nadu Dr. Ambedkar Law University Act, 1996

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State of Tamilnadu- Act

Tamil Nadu Dr. Ambedkar Law University Act, 1996

TAMILNADU

India

Tamil Nadu Dr. Ambedkar Law University Act, 1996

Act 43 of 1997

Published on 6 August 1997

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Tamil Nadu Dr. Ambedkar Law University Act, 1996

(Tamil Nadu Act

43 of 1997

)

Statement of Objects and Reasons - Tamil Nadu Dr. Ambedkar Law University Act, 1996 (Tamil Nadu Act

43 of 1997

). - Recent advancement in professional education has shown that the starting of Universities on the basis of the particular profession has resulted in considerable improvement in the standards of education and in the development of particular profession. If the law colleges and institutions which have been hitherto affiliated to, or approved by, various Universities in Tamil Nadu are brought under single University, there will be uniform standard of education resulting in improvement in the field of law with reference to the latest developments in the field of law. With the above object in

view, the Government have decided to establish a Law University, namely, the Tamil Nadu Dr. Ambedkar Law University. The said University will be of an affiliating type.

2. The Bill seeks to give effect to the above decision.

3. The provisions of the Bill are explained in the Notes on Clauses appended to the Bill.

Published in Part IV - Section 1, page 134 of the Tamil Nadu Government Gazette Extraordinary, dated the 22nd August 1996.

Statement of Objects and Reasons - Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998). - The Government Law College at Tirunelveli was established subsequent to the passing of the Tamil Nadu Dr. Ambedkar Law University Bill, 1996 by the Legislative Assembly. Hence, amendment is necessary to the Tamil Nadu Dr. Ambedkar Law University Act, 1996 (Tamil Nadu Act

43 of 1997

) to include the said college in the Schedule to the said Act. The Government have decided to amend the said Act for the said purpose. The Government have also decided to amend section 29 of the said Act so as to give representation to the Mofussil Bar Associations in the Academic Senate of the University.

2. The Bill seeks to give effect to the above decisions.

Published in Part IV - Section 1, page 25 of the Tamil Nadu Government Gazette Extraordinary, dated the 7th April 1998.

Statement of Objects and Reasons - Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 2001 (Tamil Nadu Act 8 of 2001). - The Committee on papers laid on the Table of the House in its 42nd Report has stated that there are provisions in certain Universities Acts for placing the Annual Reports and the Annual Accounts of the University before the State Legislature and therefore, the Committee has suggested to take necessary action to make similar provisions in the Acts of the other Universities also including the Tamil Nadu Dr. Ambedkar Law University Act, 1996 (Tamil Nadu Act 43 of 1997

). The Government have therefore, decided to make provisions in the Tamil Nadu Act

43 of 1997

for laying the Annual Report and Annual Accounts of the Tamil Nadu Dr. Ambedkar Law University before the Legislature by the Government, by amending the said Act, suitably.

2. The Bill seeks to give effect to the above decision.

Published in Part IV - Section 1, page 147 of the Tamil Nadu Government Gazette Extraordinary, dated the 11th November 2000.

Received the assent of the President on the 6th August 1997 and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 8th August 1997.

Chapter I

Preliminary

1.

Short title, extent, application and commencement.

(1)

This Act may be called the Tamil Nadu Dr. Ambedkar Law University Act, 1996.

(2)

It extends to the whole of the State of Tamil Nadu.

(3)

It applies to -

(a)

every Law college specified in the Schedule which are deemed to be affiliated to the University under this Act;

(b)

every other law college or institute situated within the University area which may be affiliated to, or approved by, the University in accordance with the provisions of this Act, statutes, ordinance or regulations; and

(c)

every college or institution situated within the University area, which conducts any course of study or imparts any training which may qualify for the award of any degree, diploma or other academic distinction in law by the University.

(4)

This section and sections 2, 3, 4, 5, 6, 7, 8, 9,10,11,12,13,14,15,16, 17,21,48,49,50,52,61,63,64,65,68,69 and 71 shall come into force at once and the remaining provisions of this Act shall come into force on such [date]

[Sections 3, 4 and 6 shall be deemed to have come into force on the 8th day of August 1997. Section 5 shall be deemed to have come into force on the 17th day of March 1998.]

as the Government may, by notification appoint, and different dates may be appointed for different provisions of this Act.
2.

Definitions.

- In this Act, unless the context otherwise requires, -

(a)

"Bar Council of India" means a college or institution situated within the University area and affiliated to the University; a college deemed to be affiliated to the University and an autonomous college;

(b)

"autonomous college" means any college designated as an autonomous college by or under the statutes;

(c)

"Bar Council of India" means the Bar Council of India constituted under the Advocates Act, 1961 (Central Act 25 of 1961

);

(d)

"Bar Council of Tamil Nadu" means the Bar Council of Tamil Nadu constituted for the State of Tamil Nadu;

(e)

"college" means a college or institution established or maintained by, or affiliated to the, University and providing any course of study or training in law for admission to the examination for degrees, diplomas or other academic distinctions of the University;

(f)

"date of commencement of this Act", in relation to any provision of this Act means, the date of the coming into force of that provision;

(g)

"Faculty" means a Faculty of the University;

(h)

"Government" means the State Government;

(i)

"hostel" means a unit of residence for the students of the University maintained or recognised by the University in accordance with the provisions of this Act, and includes a hostel deemed to be recognised by the University under this Act;

(j)

"prescribed" means prescribed by this Act or the statutes or ordinances or regulations;

(k)

"principal" means the head of a college;

(l)

"registered graduate" means a graduate registered under this Act;

(m)

"statutes", "ordinances" and "regulations" mean respectively, the statutes, ordinances and regulations of the University made or continued in force under this Act;

(n)

"teachers" means Professors, Readers, Lecturers, whether full time or part-time Lecturers (Senior Scale); Lecturers (Selection Grade)

and other persons giving instruction in University colleges or institutions in affiliated or approved colleges or in hostels and libraries as may be declared by the statutes to be teachers;

(o)

"teachers of the University" means persons appointed by the University to give instruction on its behalf;

(p)

"University" means the Tamil Nadu Dr. Ambedkar Law University;

(q)

"University area" means the area to which this Act extends under sub-section (2) of section 1 excluding the Annamalai Nagar as defined in clause (a) of section 2 of the Annamalai University Act, 1928 (Tamil Nadu Act 1 of 1929);

(r)

"University college" means a college or a college combined with research institute maintained by the University, whether instituted by it, or not, providing courses of study leading upto the post-graduate and professional degrees of the University;

(s)

"University Grants Commission" means 'the Commission established under section 4 of the University Grants Commission Act, 1956 (Central Act III of 1956);

(t)

"University Lecturer," "University Reader", "University Professor" or "University Teacher" means Lecturer, Reader, Professor or Teacher, respectively, appointed or deemed to be appointed as such by the University;

(u)

"University Library" means a Library maintained by the University, whether instituted by it or not.

Chapter II

The University

3.

[Establishment of University.

[Deemed to have come into force on 8th August 1997 (Tamil Nadu Act 17 of 1998).]

(1)

For the advancement and promotion of learning and knowledge of law, there shall be established a University by the name "the Tamil Nadu Dr. Ambedkar Law University".

(2)

The University shall be a body corporate having perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The headquarters of the University shall be located within the limits of the Chennai Metropolitan Planning Area as defined in clause (23-a) of section 2 of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972

)]

4.

[Objects of University.

[Deemed to have come into force on 8th August 1997 (Tamil Nadu Act 17 of 1998).]

- The University shall have the following objects, namely: -

(a)

to provide for the advancement and dissemination of knowledge of law and their role in the development of better education;

(b)

to promote the legal education and well being of the community generally;

(c)

to develop in the student and research scholar, a sense of responsibility to serve the society in the field of law by developing skills in regard to advocacy, legal services, legislation, law reforms and the like;

(d)

to organise lecture, seminars, symposia and conference;

(e)

to promote legal knowledge and to make law as efficient instruments of social development;

(f)

to provide access to legal education for large segments of the population, and in particular to the disadvantaged groups such as those living in remote and rural areas;

(g)

to promote acquisition of legal knowledge in rapidly developing and changing society and to continually offer opportunities for upgrading knowledge, training and skills in the context of innovation, research and discovery in all fields of human endeavours;

(h)

to provide innovative systems of University level education, flexible and open, in regard to methods and pace of learning, combination of course, age of entry, conduct of examination and operation of the programmes with a view to promote learning and encourage excellence in new fields of legal knowledge;

(i)

to provide education and training in the various fields of law in the State raising their quality and improving their availability to the people;

(j)

to provide suitable post-graduate courses of study and promote research in the various fields of law;

(k)

to promote national integration and the integrated development of the human personality through its policies and programmes.]

5.

[Powers and functions of University.

[Deemed to have come into force on 8th August 1997 (Tamil Nadu Act 17 of 1998).]

- The University shall have the powers, -

(i)

to administer and manage the University and such centres for research, for legal education or for advancement of knowledge in law;

(ii)

to provide for instructions or training in such branches of learning pertaining to law, as the University may deem fit;

(iii)

to make provisions for research or for the advancement or dissemination of knowledge in legal education;

(iv)

to organise and undertake extension services;

(v)

to affiliate colleges to the University under conditions prescribed and to withdraw such affiliation :

Provided that no college shall be affiliated to the University unless the permission of the Government to establish such college has been obtained and the terms and conditions, if any, of such permission has been complied with;

(vi)

to institute degrees, titles, diplomas and other academic distinctions;

(vii)

to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons who shall have pursued an approved course of study in the University, University college or any college affiliated or deemed to be affiliated to the University under this Act and shall have passed the prescribed examinations of the University subject to such conditions as the University may determine;

(viii)

to confer degrees, titles, diplomas and other academic distinctions on persons who shall have pursued an approved course of study in an autonomous college;

(ix)

to confer honorary degrees or other distinctions under conditions prescribed;

(x)

to fix fees to demand and receive such fees as may be prescribed;

(xi)

to establish, maintain and manage hostels and to recognise places of residence for the students of the University and to withdraw such recognition to any such place of residence;

(xii)

to establish such special centres, specialised study centres, school of excellence which may serve as a lead agent for all other law college to emulate or other units for research and instruction and for promotion of distance education centres as are, in the opinion of the University, necessary for the furtherance of its objects;

(xiii)

to supervise and control the residence and to regulate the discipline of the students of the University and to make arrangements for promoting their health;

(xiv)

to make arrangements in respect of the residence, discipline and teaching of women students;

(xv)

to create academic, technical, administrative, ministerial and other posts and to make appointments thereto;

(xvi)

to provide, control and maintain discipline among the students and to regulate and enforce discipline among all categories of employees of the University and to lay down the conditions of service of such employees including their code of conduct and to take such disciplinary measures as may be deemed necessary;

(xvii)

to institute lecturerships, readerships, professorships and other teaching posts required by the University and to appoint persons to such lecturerships, readerships, professorships and other teaching posts;

(xviii)

to institute and award fellowships, travelling fellowships, scholarships, studentships, bursaries, prizes and medals in accordance with the statutes;

(xix)

to provide for printing, reproduction and publication of research and other works and to organise exhibitions;

(xx)

to sponsor and undertake research in all aspects of law, justice and social development;

(xxi)

to co-operate with any other organisations in the matter of education, training and research in law, justice, social development, and allied subjects for such purposes as may be agreed upon on such terms and conditions as the University may, from time to time, determine;

(xxii)

to co-operate with institutions of higher learning in any part of the world having objects wholly or partially similar to those of the University, by exchange of teachers and scholars and generally in such manner as may be conducive to the common objects;

(xxiii)

to regulate the expenditure and to manage the accounts of the University;

(xxiv)

to establish and maintain within the University or elsewhere, such class rooms and study halls as the University may consider necessary and adequately furnish the same and to establish and maintain such libraries and reading rooms as may appear convenient or necessary for the University;

(xxv)

to receive grants, subventions, subscriptions, donations and gifts for the purposes of the University and consistent with the objects for which the University is established;

(xxvi)

to purchase, take on lease or accept as gifts or otherwise, an) land or building or works which may be necessary or convenient for the purpose of the University on such terms and conditions as it may think fit and proper and to construct or later to maintain any such building or works;

(xxvii)

to sell, exchange, lease or otherwise dispose of all or any portion of the properties of the University, movable or immovable, on such terms as it may think fit and proper without prejudice to the interest and activities of the University;

(xxviii)

to draw and accept, to make and endorse, to discount and negotiate, Government and other promissory notes, bills of exchange, cheque or other negotiable instruments;

(xxix)

to execute conveyances, transfers, reconveyances, mortgages, leases, licenses and agreements in respect of property, movable or immovable including Government securities belonging to the University or to be acquired for the University;

(xxx)

to appoint, in order to execute an instrument or transact any business of the University, any person as it may deem fit;

(xxxi)

to give up and cease from carrying on any classes or departments of the University;

(xxxii)

to enter into any agreement with the Central Government, State Governments, the University Grants Commission or other Authorities for receiving grants;

(xxxiii)

to accept grants of money, securities or property of any kind on such terms as it may deem expedient;

(xxxiv)

to raise and borrow money on bonds, mortgages, promissory notes or other obligations or securities upon all or any of the properties an assets of the University or without any securities and upon such terms and conditions as it may deem fit and to pay out of the funds of the University, all expenses incidental to the raising of money, and to repay and redeem any money borrowed;

(xxxv)

to invest the funds of the University money entrusted to the University in or upon such securities and in such manner as it may deem fit and, from time to time, transpose any investment;

(xxxvi)

to make such regulations as may, from time to time, be considered necessary for regulating the affairs and the management of the University and to alter, modify and to rescind them;

(xxxvii)

to constitute for the benefit of the academic, technical, administrative and other staff, in such manner and subject to such conditions as may be prescribed by the regulations, such as pensions, insurance, provident fund and gratuity as it may deem fit and to make such grants as it may deem fit for the benefit of any employee of the University and to aid in the establishment and support of the associations, institutions funds, trusts and conveyances calculated to benefit the staff and the students of the University;

(xxxviii)

to delegate all or any of its powers and functions to any authority of the University or any committee or any sub-committee or to any one or more members of its body or its offices; and

(xxxix)

to do all such other acts or things as the University may consider necessary, conducive or incidental to the attainment or enlargement of its objects, powers and functions or any one of them.]

6.

[Colleges not to be affiliated to any other University and recognition of college by University.

[Deemed to have come into force on 8 August 1998 (T. N. Act 17 of 1998).]

(1)

No Law college or institution imparting legal education within the University area shall be affiliated to any other University other than the Tamil Nadu Dr. Ambedkar Law University.

(2)

No Law college or institution imparting legal education affiliated to, or associated with, or maintained by, any other University, whether within the State of Tamil Nadu or outside the State of Tamil Nadu, shall be recognised by the University for any purpose except with the prior approval of the Government and the University concerned.]

7.

Admission to University.

(1)

The University shall, subject to the provisions of this Act and the statutes, be open to all persons.

(2)

Nothing contained in sub-section (1) shall require the University, -

(a)

to admit to any course of study any person who does not possess the prescribed academic qualification or standard;

(b)

to retain on the rolls of the University any student whose academic record is below the minimum standard required for the award of a degree, diploma or other academic distinction; or

(c)

to admit any person or retain any student whose conduct is prejudicial to the interests of the University or the rights and privileges of other students and teachers.

(3)

Subject to the provisions of sub-section (2), the Government may, by order, direct that the University shall reserve such percentage of seats therein for the students belonging to the Scheduled Castes, the Scheduled Tribes, Most Backward Classes including Denotified Communities and Backward Classes, as may be specified in such order and where such direction has been given, the University shall make the reservation accordingly.

8.

Visitation.

(1)

The Government shall have the right to cause an inspection or inquiry, to be made, by such persons or person, as they may direct, of the University, its buildings, museums, workshops, and equipments and of any institution maintained, recognised or approved by the University and also of the examination, teaching and other works conducted or done by the University and to cause an inquiry to be made in respect of any matter connected with the University. The Government shall, in every case, give notice to the University of their intention to cause such inspection or inquiry to be made and the University shall be entitled to be represented thereat.

(2)

The Government shall communicate to the Syndicate their views with reference to the results of such inspection or inquiry and may, after ascertaining the opinion of the Syndicate thereon, advise the University upon the action to be taken and fix a time limit for taking such action.

(3)

The Syndicate shall report to the Government through the Vice-Chancellor, the action, if any, which is proposed to be taken or has been taken upon the result of such inspection or inquiry. Such report shall be submitted within such time as the Government may direct.

(4)

Where the Syndicate does not take action to the satisfaction of the Government within a reasonable time, the Government may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as they may think fit and the Syndicate shall comply with such directions. In the event of the Syndicate not complying with such directions within such time as may be fixed in that behalf by the Government, the Government shall have power to appoint any person or body to comply with such directions and make such orders as may be necessary for the expenses thereof.

Chapter III

Officers of the University

9.

Officers of University.

- The University shall consist of the following officers, namely: -

(1)

the Chancellor;

(2)

the Pro-Chancellor;

(3)

the Vice-Chancellor;

(4)

the Registrar;

(5)

the Finance Officer;

(6)

the Controller of Examinations; and

(7)

such other persons as may be declared by statutes to be officers of the University.

10.

Chancellor.

(1)

The Governor of Tamil Nadu shall be the Chancellor of the University. He shall, by virtue of his office, be the head of the University and President of the Academic Senate and shall, when present, preside at the meetings of the Academic Senate and at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(2)

When power is conferred upon the Chancellor to nominate persons to the authorities, the Chancellor shall, in consultation with the Vice-Chancellor, and to the extent necessary, nominate persons to represent the interest not otherwise adequately represented.

(3)

The Chancellor may, of his own motion or on application, call for and examine the record of any officer or authority of the University in respect of any proceeding to satisfy himself as to the legality of such proceedings or the correctness, legality or propriety of any decision taken or order passed therein, and if, in any case, it appears to the Chancellor that any such proceeding, decision or order should be modified, annulled, reversed or remitted for reconsideration, he may pass orders accordingly:

Provided that every application to the Chancellor for the exercise of the powers under this sub-section shall be preferred within three months from the date on which the proceeding, decision or order to which the application relates was communicated to the applicant:

Provided further that no order prejudicial to any person shall be passed unless such person has been given an opportunity of making his representation.

(4)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred on him by or under the provisions of this Act.

11.

Pro-Chancellor.

(1)

The Minister in-charge of the portfolio of law in the State of Tamil Nadu shall be the Pro-Chancellor of the University.

(2)

In the absence of the Chancellor or during the Chancellor's inability to act, the Pro-Chancellor shall exercise all the powers and perform all the functions of the Chancellor.

(3)

The Pro-Chancellor shall exercise such other powers and perform such other functions as may be conferred on him by or under this Act.

12.

Vice-Chancellor.

(1)

Every appointment of Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said Committee :

Provided that if the Chancellor does not approve any of the person in the panel so recommended by the Committee, he may take steps to constitute another Committee, in accordance with sub-section (2) to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as Vice-Chancellor.

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the

Government, one shall be nominated by the Academic Senate and one shall be nominated by the Syndicate: Provided that the persons so nominated shall not be a member of any of the authorities of the University.

(3)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for re-appointment for a further period of three years :

Provided that no person shall hold the office of the Vice-Chancellor for more than six years in the aggregate :

Provided further that -

(a)

the Chancellor may direct that a Vice-Chancellor whose term of office has expired, shall continue in office for such period, not exceeding a total period of one year, as may be specified in the direction;

(b)

the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months notice, resign his office:

Provided also that a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes the age of [seventy years]

[Substituted for 'sixty-five' by Tamil Nadu Act No. 49 of 2012, Dated. 16.11.2012, w.e.f. 31.07.2012.]

years.

(4)

When any temporary vacancy occurs in the office of the Vice-Chancellor or when the Vice-Chancellor is, by reason of illness, absence or for any other reason, unable to exercise the powers and perform the duties of his office, the senior most Professor of the University shall exercise the powers and perform the duties of the Vice-Chancellor till the Syndicate makes the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(5)

The Vice-Chancellor shall be a whole-time officer of the University and his emoluments and other terms and conditions of service shall be as follows: -

(a)

there shall be paid to the Vice-Chancellor a fixed salary of seven thousand six hundred rupees per mensem or such higher salary as may be fixed by the Government, from time to time, and he shall be entitled to such other perquisites as may be fixed by the statutes;

(b)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor, from time to time :

Provided that, where an employee of, -

(i)

the University or colleges or institutions maintained by or affiliated to, that University; or

(ii)

any other University or colleges or institutions maintained by or affiliated to that University,

is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the Provident Fund to which he is a subscriber, and the contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor;

(c)

The Vice-Chancellor shall be entitled to travelling allowance at such rates as may be fixed by the Syndicate;

(d)

The Vice-Chancellor shall be entitled to earned leave on full pay at one-eleventh of the periods spent by him on active service : Provided that when the earned leave applied for the Vice-Chancellor in sufficient time before the date of expiry of the term of his office, is refused by the Chancellor in the interests of the University and if he does not avail of the leave before the date of expiry of the term of his office, he shall be entitled to draw cash equivalent to leave salary after relinquishment of his office in respect of earned leave at his credit subject to a maximum of two hundred and forty days;

(e)

The Vice-Chancellor shall be entitled on medial grounds or otherwise, to leave without pay for a period not exceeding three months during the term of his office:

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to earned leave under clause (d).

13.

Removal of Vice-Chancellor.

(1)

If, in the opinion of the Chancellor, the Vice-Chancellor wilfully omits or refuses to carry out the provisions of this Act, or abuses the powers vested in him, or misbehaves or mismanages or his conduct involves moral turpitude or if it otherwise appears to the Chancellor that the continuance of the Vice-Chancellor in office is detrimental to the interest of University, the Chancellor may, direct the Pro-Chancellor to constitute a Committee consisting of not less than three members to enquire into the matter and place the report of the Committee before the Chancellor.

(2)

The Chancellor shall, after considering the report of the Committee, is satisfied that the continuance of the Vice-Chancellor in office will be detrimental to the interests of the University or if he is found guilty of all or any of the charges by order, remove the Vice-Chancellor :

Provided that no order shall be passed under this section unless a reasonable opportunity of being heard is given to the Vice-Chancellor.

14.

Powers and duties of Vice-Chancellor.

(1)

The Vice-Chancellor shall be the academic head and principal executive officer of the University.

(2)

The Vice-Chancellor shall, in the absence of the Chancellor and Pro Chancellor, preside at the meetings of the Academic Senate and at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(3)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(4)

The Vice-Chancellor shall ensure that faithful observance of the provisions of this Act, the statutes, ordinances and regulations made thereunder and he may exercise all powers as may be necessary for the purpose.

(5)

The Vice-Chancellor shall give effect to the orders of the Syndicate regarding the appointment, suspension and dismissal of the teachers and other employees of the University and any other decision of the Syndicate.

(6)

In any emergency which in the opinion of the Vice-Chancellor requires immediate action to be taken, he shall, by order, take such action as he deems necessary and shall, at the earliest opportunity, report the action taken to such officer or authority or body as would have, in the ordinary course, dealt with the matter:

Provided that no such order shall be passed unless the persons likely to be affected has been given a reasonable opportunity of being heard.

(7)

Any person aggrieved by any order of the Vice-Chancellor under sub-section (6), may prefer an appeal to the Syndicate within thirty days from the date on which such order is communicated to him and the Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(8)

The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate, the Planning Board and the Finance Committee. The Vice-Chancellor shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(9)

The Vice-Chancellor shall have power to convene meeting of the Syndicate, the Academic Senate, the Planning Board and the Finance Committee.

(10)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching and research, extension education and curriculum development.

(11)

The Vice-Chancellor shall exercise such other powers and perform such other duties as may be prescribed by the statutes.

15.

Registrar.

(1)

The Registrar shall be a whole-time salaried officer of the University appointed by the Syndicate.

(2)

The terms and conditions of service of the Registrar shall be as follows:

(a)

The holder of the post of Registrar shall be an academician in the field of law not lower in rank than that of the Principal of Law college, or the Professor of the University who has put in a service in such capacity for a period of not less than three years or an officer of the Government not lower in rank than that of the Deputy Secretary to Government, Law Department.

(b)

The Registrar shall hold office for a period of three years and shall be eligible for re-appointment:

Provided that the Registrar shall retire on attaining the age of fifty-eight years or on the expiry of the period specified in this clause, whichever is earlier.

(c)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed.

(d)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the office of the Registrar shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as may be specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or with-holding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken against him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in clause (a).

(c)

In any case where the inquiry discloses that the punishment beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations and the Vice-Chancellor shall pass such order as he deems fit:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty.

(d)

No appeal under clause (b) or clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the appellant.

(4)

Save as otherwise provided in this Act, the Registrar shall be the ex-officio Secretary to the Syndicate, the Academic Senate, the Faculties and the Boards of Studies, but shall not be deemed to be a member of any of these authorities.

(5)

It shall be the duty of the Registrar, -

(a)

to be the custodian of the records, the common seal and such other property of the University as the Syndicate shall

commit to his charge;

(b)

to issue all notices convening meetings of the Syndicate, the Academic Senate, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(c)

to keep the minutes of all the proceedings of the meeting of the Syndicate, the Academic Senate, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Syndicate;

(e)

to supply to the Chancellor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of the proceedings of such meetings; and

(f)

to exercise such other powers and perform such other duties as may be specified in the statutes, the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

(6)

In all suits and other legal proceedings by, or against the University, the pleadings shall be signed and verified by the Registrar and all processes in such suits and proceedings shall be issued to, and served on, the Registrar.

16.

Finance Officer.

(1)

The Finance Officer shall be a whole time salaried officer of the University appointed by the Syndicate for such period as may be specified by the Syndicate in this behalf.

(2)

Appointment of the Finance Officer shall be made by the Syndicate from out of a panel of three names recommended by the Government.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed by ordinances.

(4)

The Finance Officer shall retire on attaining the age of fifty-eight years or on the expiry of the period specified by the Syndicate under sub-section (1), whichever is earlier:

Provided that the Finance Officer shall, notwithstanding his attaining the age of fifty-eight years, continue in office until his successor is appointed and enters upon his office or until the expiry of a period of one year, whichever is earlier.

(5)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the Finance Officer shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(6)

The Finance Officer shall be the ex-officio Secretary to the Finance Committee, but shall not be deemed to be a member of such Committee.

(7)

The Finance Officer shall -

(a)

exercise general supervision over the funds of the University, and shall advise the University as regards its financial policy; and

(b)

exercise such other powers and perform such other financial functions as may assigned to him by the Syndicate or as may be prescribed by the statutes or ordinances:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as may be prescribed without the previous approval of the Syndicate.

(8)

Subject to the control of the Syndicate, the Finance Officer shall, -

(a)

hold and manage the property and investments of the University including trust and endowment property;

(b)

ensure that the limit fixed by the Syndicate for recurring and nonrecurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts, financial estimate, and the budget of the University and for their presentation to the Syndicate;

(d)

keep a constant watch on the cash and bank balance and of investments;

(e)

watch the progress of the collection of revenue and advice on the methods of collection employed;

(f)

ensure that the registers of buildings, lands, furniture and equipments are maintained upto date and that stock checking is conducted of equipments and other consumable materials in all offices, special centres and colleges maintained by the University;

(g)

bring to the notice of the Vice-Chancellor any unauthorized expenditure or other financial irregularity and suggest appropriate action to be taken against persons at fault; and

(h)

call from any office, centre, college maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(9)

The receipt of the Finance Officer or the person or persons duly authorized in this behalf of the Syndicate for any money payable to the University shall be a sufficient discharge for payment of such money.

17.

Controller of Examinations.

(1)

The holder of the post of Controller of Examinations shall be an academician in the field of law not lower in rank than that of the Lecturer (Selection Grade) of a college.

(2)

The Controller of Examinations shall be a whole-time officer of the University appointed by the Syndicate for such period and on such terms and conditions as may be prescribed.

(3)

The Controller of Examinations shall exercise such powers and perform such duties as may be prescribed.

Chapter IV

Authorities of the University

18.

Authorities of the University.

- The authorities of the University shall be the Syndicate, the Academic Senate, the Boards of Studies, the Finance Committee, the Planning Board, the Faculties and such other authorities as may be declared by the statutes to be the authorities of the University.

19.

Disqualification for membership.

(1)

No person shall be qualified for nomination or election as a member of any of the authorities of the University, if on the date of such nomination or election he is -

(a)

of unsound mind or a deaf mute, or -

(b)

an applicant to be adjudicated as an insolvent or an undischarged insolvent; or

(c)

sentenced by a criminal Court to imprisonment for any offence involving moral turpitude.

(2)

In case of dispute or doubt as to whether a person is disqualified under sub-section (1), the Syndicate shall determine and its decision shall be final.

20.

Disqualification for election or nomination to Syndicate and Academic Senate in certain cases.

- (1)(a) Notwithstanding anything contained in sections 22 and 29, no person who had held office as a member for a total period of six years in any one or more of the following authorities of the University, namely: -

(i)

the Syndicate, and

(ii)

the Academic Senate, shall be eligible for election or nomination to any of the said two authorities.

(b)

Notwithstanding anything contained in clause (a), no person who has held office as a member for a total period of six years in any one or more of the following authorities of any other Universities established under any law of the State Legislature: -

(i)

the Syndicate,

(ii)

the Senate,

(iii)

the Standing Committee on Academic Affairs,

(iv)

the Governing Council,

(v)

the Board of Management,

(vi)

the Executive Council,

(vii)

the Academic Committee,

(viii)

the Academic Council,

shall be eligible for election or nomination to the Syndicate or the Academic Senate of the University under this Act:

Provided that, for the purpose of computing the total period of six years referred to in this sub-section, the period of three years during which a person Held office in one authority either by election or by nomination and the period of three years during which he held office in another authority either by election or by nomination shall be taken into account and accordingly, such person shall not be eligible for election or nomination to any of the two authorities referred to in clause (a):

Provided further that, for the purpose of this sub-section, a person who has held office for a period of not less than one year in any of the authorities referred to in clause (a) or clause (b), in casual vacancy shall be deemed to have held office for a period of three years in that authority:

Provided also that, for the purpose of this sub-section, if a person was elected or nominated to one authority and such person become a member of another authority by virtue of the membership in the first mentioned authority, the period for which he held office in the first mentioned authority alone shall be taken into account.

(2)

Nothing in sub-section (1) shall apply to -

(i)

ex-officio members referred to in section 22; and

(ii)

ex-officio members referred to in section 29, but not including members of the Syndicate who are not otherwise members of the Academic Senate.

21.

Vice-Chancellor and other officers, etc., to be public servants.

- The Vice-Chancellor, the Registrar, the Finance Officer, the Controller of Examinations and other employees of the University shall be deemed when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code (Central Act XLV of 1860).

The Syndicate

22.

Syndicate.

(1)

The Chancellor shall, as soon as may be, after the first Vice-Chancellor is appointed under section 63 constitute the Syndicate.

(2)

The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely: -

Class I - Ex-officio Members

(a)

The Secretary to Government in-charge of Law;

(b)

The Secretary to Government in-charge of Education;

(c)

The Director of Legal Studies; and

(d)

The Advocate-General, Tamil Nadu.

Class II - Other Members

(a)

One serving or retired Judge of High Court, Madras nominated by the Government in consultation with the Chief Justice of High Court, Madras;

(b)

One Teacher elected by the Academic Senate from among its members who shall be a teacher of an affiliated college;

(c)

One University Reader nominated by the Vice-Chancellor by rotation according to seniority;

(d)

Two University Professors from among the Heads of Departments of study and research, school of excellence or centres of advanced studies nominated by the Government on the recommendation of the Vice-Chancellor by rotation according to seniority;

(e)

One member nominated by the Government to secure representation of the Scheduled Castes and the Scheduled Tribes from among the members of the legal profession or from the members of the law teaching faculty;

(f)

One member nominated by the Government to secure representation of the Most Backward Classes and the Denotified Communities from among the members of the legal profession or from the members of the law teaching faculty;

(g)

Two Principals of affiliated colleges nominated by the Vice-Chancellor;

(h)

One member nominated by the Bar Council of India;

(i)

Chairman of the Bar Council of Tamil Nadu;

(j)

One member elected by the Academic Senate from among its members; and

(k)
One member nominated by the Chancellor from among the members of the Academic Senate.

(3)
The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate.

(4)
(a)
Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office for a period of three years and such members shall be eligible for election or nomination for not more than another period of three years.

(b)
Where a member is elected or nominated to the Syndicate in a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Syndicate who is elected or nominated in his capacity as a member of a particular electorate or body, or the holder of a particular appointment shall cease to be a member of the Syndicate from the date on which he ceases to be member of that electorate or body, or the holder of that appointment, as the case may be :

Provided further that where an elected or nominated member of the Syndicate is appointed temporarily to any of the office by virtue of which he is entitled to be a member of the Syndicate, ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(5)
When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

23.
Powers of Syndicate.

- The Syndicate shall have the power, -

- (1)
to make statutes and amend or repeal the same;
 - (2)
to make ordinances and amend or repeal the same;
 - (3)
to hold, control and administer the properties and funds of the University;
 - (4)
to provide for instruction and training in such branches of learning in various fields of law as it may deem fit;
 - (5)
to establish departments of study in the University in such discipline of learning in various fields of law as it may deem fit;
 - (6)
to provide for research and advancement and dissemination of knowledge in various fields of law;
 - (7)
to institute lectureship, readerships, professorships and any other teaching posts required by the University;
 - (8)
to prescribe, in consultation with expert committees, to be appointed for the purpose, the conditions for affiliating colleges to the University or approval of institutions by the University and to withdraw such affiliation or approval;
 - (9)
to institute, degrees, diplomas and other academic distinctions;
 - (10)
to confer degrees, diplomas and other academic distinctions on persons who -
- (a)

shall have pursued an approved course of study or training in a college or in an approved institution, unless exempted therefrom in the manner prescribed by the statutes and shall have passed the examinations prescribed by the University, or

(b)

shall have carried on research under conditions prescribed by the statutes;

(11)

to confer honorary degrees or other honorary distinctions on the recommendation of not less than two-thirds of the members of the Syndicate;

(12)

to consider and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;

(13)

to prescribe the qualifications of teachers in the University departments and University colleges and the affiliated colleges in the statutes;

(14)

to appoint, on the recommendation of the Selection Committee of Experts appointed for the purpose, University Lecturers, Professors, Readers and Teachers, fix their emoluments, define their duties and the conditions of their service and provide for filling up of temporary vacancies;

(15)

to make statutes specifying the mode of appointment of persons to administrative and other posts, provide for filling up of temporary vacancies and define their duties and their terms and conditions of service;

(16)

to take disciplinary proceedings against the University Professors, Readers, Lecturers, Teachers and other employees of the University in the manner prescribed by the statutes and to impose such penalties as may be specified in the statutes and to place them under suspension pending enquiry;

(17)

to cause an inspection of all colleges, and other institutions affiliated or to be affiliated, to the University and to take such action as may be deemed necessary;

(18)

to prescribe, the manner in which and the conditions subject to which, a college or institution may be designated as an autonomous college or institution and to cancel such designation;

(19)

with the concurrence of the Government, to designate any college as an autonomous college and to cancel such designation;

(20)

to recognise, on the report of inspection commission, any college or institution outside the University area;

(21)

to raise on behalf of the University loans from the Central or any State Government or any corporation owned or controlled by the Central or any State Government or from the public;

(22)

to borrow money for the purposes of the University with the . approval of the Government on the security of the property of the University;

(23)

to appoint examiners on the recommendation of the Boards of Studies and to fix their remuneration;

(24)

to charge and collect such fees as may be prescribed by the statutes;

(25)

to conduct the University examination and approve and publish the results thereon;

(26)

to appoint members to the Boards of Studies;

(27)

to make ordinances, regarding the admission of students to the University or prescribing examinations to be recognised as equivalent to University examinations;

(28)

to establish and maintain hostels;

(29)

to recognise hostels not maintained by the University; and to suspend or withdraw recognition of any hostel which is not conducted in accordance with the conditions subject to which such hostel was recognised;

(30)

to supervise the residence of the students of the University and to make arrangements for securing their health and well-being;

(31)

to award fellowships, travelling fellowships, studentships, medals and prizes in accordance with the statutes;

(32)

to manage any publication bureau, employment bureau and University sports or athletic clubs instituted by the University;

(33)

to review the instruction and teaching of the University;

(34)

to promote research within the University and to require reports, from time to time, of such research;

(35)

to administer all properties and funds placed at the disposal of the University for specific purposes;

(36)

to accept, on behalf of the University, endowments, bequests, donations, grants and transfer of any movable and immovable property of the University made to it; and

(37)

to delegate any of its powers to the Vice-Chancellor, to a Committee from among its own members to a Committee appointed in accordance with the statutes.

24.

Meetings of Syndicate.

(1)

The Syndicate shall meet at least once in every two months at such times and places and shall, subject to the provisions of sub-sections (2) and (3), observe such rules of procedure in regard to transaction of business at its meetings including the quorum at meeting as may be prescribed by the statutes.

(2)

The Vice-Chancellor or, in his absence, any member chosen by the members present, shall preside at a meeting of the Syndicate.

(3)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and, in the case of equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(4)

In case a Secretary to Government who is an ex-officio member, is unable to attend the meetings of the Syndicate for any reason, he may depute any officer of his department not lower in rank than that of a Deputy Secretary to Government to attend the meeting and the officer so deputed shall have the right to take part in the proceedings of such meetings and shall have the right to vote.

(5)

(a)

The Syndicate may, for the purpose of consultation invite any person having special knowledge or practical experience in any subject under consideration to attend any meeting. Such person may speak in and otherwise take part in the proceedings of such meeting but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Syndicate.

25.

Members not entitled to remuneration.

- The members of the Syndicate shall not be entitled to receive any remuneration from the University except such travelling and daily allowance as may be prescribed by the statutes:

Provided that nothing contained in this section shall preclude any member from drawing his emolument to which he is entitled by virtue of the office he holds.

26.

Registration of members.

- A member of the Syndicate other than ex-officio member may tender resignation of his membership at any time before the expiry of the term of his office. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member and the resignation shall take effect from the date of its acceptance by the Chancellor.

27.

Annual report.

(1)

The annual report of the University shall be prepared by the Syndicate and shall be placed before the Academic Senate on or before such date as may be prescribed by the statutes and shall be considered by the Academic Senate at its next annual meeting. The Academic Senate may pass resolution thereon and communicate the same to the Syndicate which shall take action in accordance therewith.

(2)

The Syndicate shall inform the Academic Senate of the action taken by it on the resolution passed by the Academic Senate.

(3)

A copy of the annual report and copy of the resolution passed by the Academic Senate together with information on the action taken under sub-section (2) shall be submitted to the Government by the Syndicate for information.

28.

Annual accounts.

(1)

The annual accounts of the University shall be submitted by the Syndicate to such examination and audit as the Government may direct and a copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The Syndicate shall settle objections raised in such audit and carryout such instructions as may be issued by the Government on the audit report.

(3)

The account when audited shall be published by the Syndicate in such manner as maybe prescribed by the ordinances and copies thereof shall be submitted to the Academic Senate at its meeting and to the Government within three months of such publication.

The Academic Senate

29.

Academic Senate.

(1)

The Academic Senate shall consist of the following ex-officio and other members, namely : -

Class I - Ex-Officio Members

(a)

The Chancellor;

(b)

The Pro-Chancellor;

(c)

The Vice-Chancellor;

(d)

The Advocate-General, Tamil Nadu;

(e)

The Public Prosecutor, High Court, Madras;

(f)

The principals of all Law colleges affiliated to the University;

(g)

Heads of University Department of Study and Research;

(h)

The President of the Madras High Court Women Advocates Association;

(i)

The President of the Advocates Association of Madras High Court;

(j)

The President of the Bar Association of Madras High Court;

(k)

The Librarian of the University Library; and

(l)

Members of the Syndicate who are not otherwise members of the Academic Senate.

Class II - Other Members

(a)

One serving or retired judge of High Court, Madras, nominated by the Chief Justice of High Court, Madras;

(b)

Two members nominated by the Government from among eminent Senior Advocates of whom one shall be a women Advocate;

(c)

One member nominated by the Government from among the members of the Tamil Nadu Legislative Assembly;

(d)

Two members nominated by the Bar Council of Tamil Nadu from among its members;

(e)

One Member each nominated by the Chancellor representing -

(i)

Chamber of Commerce;

(ii)

Social Sciences; and

(iii)

Other Sciences; and

(f)

One teacher from each affiliated college elected by the teachers of affiliated colleges from among themselves;

(g)

Two members nominated by the Government from among the eminent Advocates from the mofussil Bar Associations;

(h)

[Two members nominated by the Government from among the Presidents of the District Bar Associations by rotation.]

[Added by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998).]

(2)

(a)

Save as otherwise provided, elected and nominated members of the Academic Senate shall hold office for a period of three years and such members shall be eligible for election or nomination for not more than another period of three years.

(b)

Where a member is elected or nominated to the Academic Senate to a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Academic Senate who is elected or nominated in his capacity as a member of a

particular electorate or body, or the holder of a particular appointment, shall cease to be member of Academic Senate from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be :

Provided further that where an elected or a nominated member of the Academic Senate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Academic Senate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment choose, whether he will continue to be member of the Academic Senate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(3)

When a person ceases to be a member of the Academic Senate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Academic Senate.

(4)

The members of the Academic senate shall not be entitled to receive any remuneration from the University except such daily travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which he is entitled by virtue of the office he holds.

(5)

A member of the Academic Senate, other than an ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the members, and the resignation shall take effect from the date of his acceptance by the Chancellor.

30.

Academic Senate to review the policies and programmes of the University.

- Subject to the other provisions of this Act, the Academic Senate shall have the following powers and functions, namely:
-

(a)

to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(b)

to advise the Chancellor in respect of any matter, which may be referred to it for advice; and

(c)

to exercise such other powers and perform such other functions as may be prescribed by the statutes.

31.

Meetings of Academic Senate.

(1)

The Academic Senate shall meet at least twice in every year on dates to be fixed by the Vice-Chancellor. One of such meetings shall be called the annual meeting. The Academic Senate may also meet at such other times as it may, from time to time, determine.

(2)

One third of the total strength of the members of the Academic Senate shall be the quorum required for a meeting of the Academic Senate

Provided that such quorum shall not be required at a convocation of the University or a meeting of the Academic Senate held for the purpose of conferring degrees, titles, diplomas or other academic distinctions.

(3)

The Vice-Chancellor may, whenever he thinks fit, and shall upon a requisition in writing signed by not less than fifty per cent of the total members of the Academic Senate, convene a special meeting of the Academic Senate.

32.

Finance Committee.

(1)

The Finance Committee shall consist of the following members, namely: -

- (a)
the Vice-Chancellor;
- (b)
the Secretary to Government, in-charge of Finance;
- (c)
the Secretary to Government, in-charge of law; and
- (d)
three members nominated by the Syndicate from among its members of whom one shall be a University Professor and one shall be a person nominated to the Syndicate by the Government.

(2)
If, for any reason, any officer referred to in clause (b) or clause (c) of subsection (1) is unable to attend any meeting of the Finance Committee, he may depute any officer of his department not lower in rank than that of a Deputy Secretary to Government to attend such meeting. The officer so deputed shall have the right to take part in the discussion of the Finance Committee and shall have the right to vote.

(3)
The Vice-Chancellor shall be the ex-officio Chairman and the Finance Officer shall be the ex-officio Secretary to the Finance Committee.

(4)
The members nominated to the Finance Committee by the Syndicate under clause (d) of sub-section (1) shall hold office for a period of three years.

(5)
The annual accounts of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to Syndicate for approval.

(6)
The financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates as modified by Finance Committee shall, then, be laid before the Syndicate for consideration. The Syndicate may approve finance estimates with such modifications as it deems fit.

(7)
The Finance Committee shall recommend limits for the recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University which in the case of productive works may include the proceeds of loans.

(8)
The Finance Committee shall -

- (a)
meet at least once in three months to examine the accounts and to scrutinise proposals for expenditure;
- (b)
review the financial position of the University, from time to time;
- (c)
make recommendations to the Syndicate on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates for which involves expenditure in excess of the amount provided for in the annual financial estimates;
- (d)
prescribe the methods and procedure and forms for maintaining the accounts of the University;
- (e)
make recommendation to the Syndicate on all matters relating to the finances of the University; and
- (f)
perform such other functions as may be prescribed by the statutes.

33.
Planning Board.

(1)

There shall be constituted a Planning Board which shall advice generally on the planning and development of the University and review the standard of education and research in the University : -

(2)

The Planning Board shall consist of the following members, namely: -

(a)

The Vice-Chancellor who shall be the ex-officio Chairman of the Planning Board, and

(b)

not more than eight persons of high academic standing nominated by the Syndicate.

(3)

The Planning Board shall, in addition to all other person vested in it by this Act, have the right to advise the Syndicate and the Academic Senate on any academic matter.

(4)

The term of office of the nominated members of the Planning Board shall be three years and they are eligible for re-nomination after the expiry of their term of office.

34.

Board of Studies.

(1)

There shall be a Board of Studies attached to each department of teaching or research.

(2)

The constitution and powers of the Board of Studies shall be such as may be prescribed.

35.

Constitution of other authorities.

- The Syndicate may constitute such other authorities of the University as may be necessary in the manner prescribed in the statutes.

36.

Constitution of Committees and delegation of powers.

- All the authorities of the University shall have power to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit. Such committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case may deem fit.

37.

Constitution and functions of Faculties.

(1)

The University having regard to the objectives and its functions, may constitutes such Faculties as may be prescribed by statutes.

(2)

The constitution and functions of the Faculties shall, in all other respects, be such as may be prescribed by statutes.

(3)

Each faculty shall comprise such departments of teaching as may be prescribed in the statutes.

Chapter V

Statutes, Ordinances and Regulations

38.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely: -

(1)

the holding of convocation to confer degrees, diplomas and other academic distinctions;

(2)

the conferment of honorary degrees and other distinctions;

(3)

the constitution, powers and functions of the authorities of the University;

(4)

the manner of filling vacancies among members of the authorities of the University;

- (5)
the allowances to be paid to the members of the authorities of the University and committees thereto;
- (6)
the procedures at the meetings of the authorities of the University including the quorum for the transaction of business at such meetings;
- (7)
the authentication of the orders or decisions of the authorities of the University;
- (8)
the formation of departments of research at the University;
- (9)
the term of office and methods of appointment and conditions of service of the officers of the University other than the Chancellor and the Pro-Chancellor;
- (10)
the qualifications of the teachers and other persons employed by the University and affiliated colleges or institutions;
- (11)
the classification, the method of appointment and determination of the terms and conditions of service of the teachers and other persons employed by the University;
- (12)
the institution of pension, gratuity, insurance or provident fund for the benefit of the officers, teachers and other persons employed by the University;
- (13)
the institution of fellowships, travelling fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes and the conditions of award thereof;
- (14)
the conditions of affiliation of colleges to the University;
- (15)
the manner in which and the conditions subject to which a college may be designated as an autonomous college and the conditions subject to which such designation may be cancelled and matters incidental to the administration of autonomous colleges including the constitution or reconstitution, power and duties of Boards of Studies and Boards of Examiners;
- (16)
the establishment and maintenance of halls and hostels;
- (17)
the conditions for regulation of hostels other than those maintained by the University;
- (18)
the conditions for residence of students of the University in the halls and the hostels and the levy of fees and other charges for such residence;
- (19)
the conditions of registration of graduates and the maintenance of register thereof;
- (20)
the delegation of powers vested in the authorities of officers of the University; and
- (21)
any other matter which is required to be or may be prescribed by the statutes.

39.

Statutes how made.

- (1)
The Syndicate may, from time to time, make statutes and amend or repeal the statutes in the manner hereafter provided in this section.
- (2)
The Academic Senate or the Vice-Chancellor may propose to the Syndicate the draft of any statutes or of any amendments to or of repeal of, a statute to be passed by the Syndicate and such draft shall be considered by the

Syndicate at its next meeting :

Provided that the Vice-Chancellor shall not propose any amendment to any statute affecting the statutes, powers and constitution of any authority of the University, until such authority has been given an opportunity of expressing its opinion, and the opinion, so expressed shall be considered by the Syndicate.

(3)

The Syndicate may consider the draft proposed by the Academic Senate or the Vice-Chancellor under sub-section (2), and may either, pass the draft or reject or return it with or without amendments to the Academic Senate or the Vice-Chancellor, as the case may be, for reconsideration.

(4)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute or any amendment to, or of repeal of, a statute and the Syndicate, may either accept or reject the draft if it relates to matter not falling within the purview of the Academic Senate.

(b)

In case such draft relates to a matter within the purview of the Academic Senate, the Syndicate shall refer it for consideration to the Academic Senate, which may either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Academic Senate may approve and the Syndicate may either pass with or without amendment or reject the draft.

(5)

A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or withhold his assent. A statute or an amendment to, or repeal of, a statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

40.

Ordinances.

- Subject to the provisions of this Act and the statutes, the ordinances may provide for all or any of the following matters, namely: -

(a)

the admission of the students of the University and its affiliated colleges and the levy of fees for admission to the University and colleges;

(b)

the courses of study leading to all degrees, diplomas and other academic distinctions of the University;

(c)

the conditions under which the students shall be admitted to the courses of study leading to degrees, diploma and other academic distinctions of the University;

(d)

the conduct of examination of the University and the conditions subject to which students shall be admitted to such examinations;

(e)

the manner in which exemption relating to the admission of students to examinations may be given;

(f)

the conditions and mode of appointment and duties of examining bodies and examiners;

(g)

the maintenance of discipline among the students of the University;

(h)

the fees to be charged for courses of study, research, experiment and practical training and for admission to the examinations for degrees, diplomas and other academic distinctions of the University;

(i)

any other matter which by this Act or the statutes is required to be, or may be, prescribed by ordinances.

41.

Ordinances how made.

(1)

In making ordinances, the Syndicate shall consult -

(a)
the Board of Studies when such ordinances affect the appointment and duties of examiners, and

(b)
the Academic Senate when they affect the conduct of standard of examinations or the conditions of residence of students;

(2)
All ordinances made by the Syndicate shall have effect from such date as the Syndicate may direct and every ordinance so made shall be submitted, as soon as may be, to the Chancellor and the Academic Senate and shall be considered by the Academic Senate at its next succeeding meeting.

(3)
The Chancellor may direct that the operation of any ordinance shall be suspended until such time as the Academic Senate has had an opportunity of considering the same.

42.

Regulations.

(1)
The Syndicate and the Academic Senate may make regulations consistent with the provisions of this Act, the statutes and the ordinances for all or any of the matters which by this Act and the statutes and ordinances are to be provided for by regulations.

(2)
All such regulations shall have effect from such date as the Syndicate or the Academic Senate, as the case may be, may appoint in that behalf.

Chapter VI

Admission and Residence of Students

43.

Admission to University Courses.

(1)
No person shall be admitted to a course of study in the University for admission to the examination for degrees, diplomas or other academic distinctions of the University unless, he -

(a)
has passed the examination prescribed therefor; and

(b)
fulfills such other conditions as may be prescribed by the University.

(2)
Every candidate for a University examination shall, unless exempted from the provisions of this sub-section by a special order of the Syndicate made on the recommendation of the Academic Senate, be enrolled as a member of a University college or of an affiliated college, as the case may be. Any such exemption may be made subject to such conditions as the Syndicate may deem fit.

(3)
Students exempted from the provisions of sub-section (2) and students admitted in accordance with the conditions prescribed to courses of study other than courses of study for a degree shall be non-collegiate students of the University.

44.

Selection and admission of candidates to colleges and institutions.

- Notwithstanding anything contained in section 43 or in any other provisions of this Act, -

(a)
the Government shall be the competent authority to select and admit candidates to a course of study or training in the Government colleges and institutions and to a course of study or training in private colleges including aided colleges and institutions to which this Act applies in respect of seats under Government quota; and

(b)
the Government may specify, by general or special order, the policy, guidelines, method and procedure for selection of

candidates for admission to a course of study or training in Government colleges and institutions and to a course of study or training in private colleges including aided colleges and institutions to which this Act applies, in respect of seats under Government quota.

Explanation. - In this section, the expression "seats under Government quota" means the seats reserved in a course of study or training in private colleges or private institutions to which this Act applies, to be filled in by the Government from among the approved list of candidates selected for admission.

45.

Admission to University examinations.

- No candidate shall be admitted to any University examination unless he is enrolled as a member of a University college or of an affiliated or approved college and has satisfied the requirements as to the attendance required under the regulations for the same or unless he is exempted from such requirements of enrollment or attendance or both by an order of the Syndicate passed on the recommendation of the Academic Senate made under the regulations prescribed. Exemptions granted under this section shall be subject to such conditions as the Syndicate may deem fit.

46.

Attendance qualifying for University examinations.

- No attendance at instruction given in any college or institution, other than that conducted, affiliated or approved by the University, shall qualify for admission to any examination of the University.

47.

Residence and hostels.

- Every student of the University, other than a non-collegiate student, shall be required to reside in a hostel or under such other conditions as may be prescribed.

Chapter VII

University Funds, Etc.

48.

General Funds.

- The University shall have a General Fund to which shall be credited, -

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government or any State Government or any local authority or the University Grants Commission or any other similar body or any corporation owned or controlled by the Central or any State Government;

(c)

the endowments and other receipts; and

(d)

the money borrowed by it.

49.

Other Funds.

- The University may have such other funds as may be prescribed by the statutes.

50.

Management of Funds.

- The funds and all moneys of the University shall be managed in such manner as may be prescribed by the statutes.

Chapter VIII

Conditions of Service

51.

Pension, gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers, and other persons employed by the University, such pension, gratuity, insurance and provident fund as it may deem fit, in such manner and subject to such conditions as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1), the Government may declare that the provisions of the Provident Fund Act, 1925 (Central Act XIX of 1925), shall apply to such fund as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the provident fund in such manner, as it may determine.

52.

Conditions of service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of service of officers, teachers and other persons employed in the University shall be such as may be prescribed by the statutes :

Provided that in regard to the appointments in the University, the rules of reservation as applicable to the appointments in the services under the Government shall be followed.

Explanation. - For the purpose of this section, the word "officers" shall not include the Chancellor and the Pro-Chancellor.

53.

Selection Committee.

(1)

There shall be a Selection Committee for making recommendations to the Syndicate for appointment to the posts of Professor, Assistant Professor, Reader, Lecturer and Librarian of University colleges or institutions maintained by the University.

(2)

The Selection Committee for appointment to the posts specified in subsection (1) shall consist of the Vice-Chancellor, a nominee of the Chancellor, a nominee of the Government and such other persons as may be prescribed by the statutes: Provided that the selection for such appointment by the Selection Committee shall be made in accordance with the guidelines that may be issued by the University Grants Commission or other agencies concerned in relation to such appointment.

54.

Terms and conditions of appointment of Heads of Departments.

(1)

Each Department of the University shall have a Head who shall be a Professor and whose duties and functions and terms and conditions of appointment shall be such as may be prescribed by the ordinances :

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed in the manner prescribed by the ordinances.

Provided further that in a Department where there is no Professor, an Assistant Professor or a Reader may be appointed as Head of the Department in the manner prescribed by the ordinances.

(2)

It shall be open to a Professor or an Assistant Professor or a Reader to decline the offer of appointment as Head of the Department.

(3)

A person appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for re-appointment.

(4)

A Head of the Department may resign his office at any time during his tenure of office.

(5)

A Head of the Department shall perform such functions as may be prescribed by the ordinances.

55.

Deans of Faculties.

(1)

Every Dean of Faculty shall be appointed by the Vice-Chancellor from among the Professors in the Faculty for a period of three years and he shall be eligible for re-appointment:

Provided that a Dean, on attaining the age of fifty-eight years, shall cease to hold office as such :

Provided further that if at any time there is no Professor in a Faculty, the Vice-Chancellor shall exercise the powers of the Dean of the Faculty.

(2)

When the office of the Dean is vacant or when the Dean is by reason of his illness, absence or any other cause unable to perform the duties of his office, the duties of his office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The Dean shall have such other functions as may be prescribed by the ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Boards of Studies or Committees or the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

Chapter IX

Miscellaneous

56.

Filling of casual vacancies.

- All casual vacancies among the members (other than ex-officio members), of any authority or other body of the University shall be filled as soon as may be by the person or body who or which nominated or elected the member whose place has become vacant and the person nominated or elected to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member:

Provided that vacancies arising by efflux of time among elected members of any authority or other body of the University may be filled at elections which may be fixed by the Vice-Chancellor to take place on such day, not earlier than two months from the date on which the vacancies arise, as he thinks fit:

Provided further that no casual vacancy shall be filled if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

57.

Proceedings of the University authorities and bodies not to be invalidated by vacancies.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the existence of any vacancy or of any defect or irregularity in the election or appointment of a member of such authority or other body of the University or of any defect or irregularity in such act or proceedings not affecting the merits of the case or on the ground only that the authority or other body of the University did not meet at such intervals as required under this Act.

58.

Removal from membership of the University.

(1)

The Syndicate may -

(a)

on the recommendation of not less than two thirds of the members of the Syndicate, remove, by an order in writing, made in this behalf, the name of any person from the register of law graduates; or

(b)

remove, by an order in writing, made in this behalf, any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the Syndicate and by a majority of not less than two-thirds of the members of the Syndicate present and voting at the meeting, if such person has been convicted by a criminal Court for an offence which in the opinion of the Syndicate involves moral turpitude or if he has been guilty of gross misconduct and for the same reason, the Syndicate may withdraw any degree or diploma or other academic distinction conferred on, or granted to, that person by the University.

(2)

The Syndicate may also, by an order in writing made in this behalf, remove any person from the membership of any authority of the University if he becomes of unsound mind or deaf-mute or has applied to be adjudicated, or has been

adjudicated, as an insolvent.

(3)

No action under this section shall be taken against any person unless he has been given a reasonable opportunity to show cause against the action proposed to be taken.

(4)

A copy of every order passed under sub-section (1) or sub-section (2), as the case may be, shall, as soon as may be, after it is so passed, be communicated, to the person concerned in the manner prescribed by regulations.

59.

Disputes as to election or nomination to University authorities and bodies.

- If any question arises, whether any person has been duly elected or nominated as, or is entitled to be, a member of any authority of the University or other body or the University, the question shall be referred to the Chancellor whose decision thereon shall be final.

60.

Constitution of Committees.

- All the authorities of the University shall have power to constitute or reconstitute Committees and to delegate to them such of their powers as they deem fit. Such Committees shall, save as otherwise provided, consist of members of the authority concerned and such other persons, if any, as the authority in each case may deem fit.

61.

Power to obtain information.

- Notwithstanding anything contained in this Act, or in any other law for the time being in force, the Government may, by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish to the Government with such information within a reasonable period:

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor for his decision.

62.

Registration of graduates.

(1)

On and from the date of commencement of this Act, every person ordinarily resident within the University area, who -

(i)

has been for at least three years a law graduate of any University in the territory of India; or

(ii)

is a registered law graduate of any University in the territory of India shall be entitled to have his name entered in the register of law graduates maintained under this Act, for a period of five years, on payment of such fee and subject to such conditions as may be prescribed by the statutes.

(2)

All applications for registration under sub-section (1) shall be sent to the Registrar together with the prescribed fee and such proof of qualifications as may be prescribed by the statutes.

(3)

The Registrar shall, on receipt of an application made under sub-section (2) and after making such enquiry as he deems fit, enter in the register of law graduates the name of the applicant.

(4)

Every person whose name has been entered in the register of law graduates under sub-section (3), shall be entitled to have such entry renewed every five years on application made in that behalf to the Registrar within such time, in such manner and on payment of such fees as may be prescribed by the statutes.

63.

Appointment of first Vice-Chancellor.

- Notwithstanding anything contained in sub-section (1) of section 12, within three months from the date of publication of this Act in the Tamil Nadu Government Gazette, the Vice-Chancellor shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they may deem fit:

Provided that a person appointed as first Vice-Chancellor shall retire from office, if, during the term of his office, he

completes the age of sixty-five years.

64.

Appointment of first Registrar.

- Notwithstanding anything contained in sub-section (1) of section 15, within three months from the date of publication of this Act in the Tamil Nadu Government Gazette, the first Registrar shall be appointed by the Government on a salary to be fixed by them for a period not exceeding three years and on such other conditions as they may deem fit:

Provided that the person appointed as first Registrar shall retire from office, if, during the term of his office, he completes the age of fifty-eight years.

65.

Transitory powers of first Vice-Chancellor.

(1)

It shall be the duty of the first Vice-Chancellor to make arrangements for constituting the Syndicate, the Academic Senate and such other authorities of the University within six months from the date of his appointment or such longer period not exceeding one year as the Government may, by notification, direct.

(2)

The first Vice-Chancellor shall, in consultation with the Government, make such rules as may be necessary for the functioning of the University.

(3)

The authorities constituted under sub-section (1) shall commence to exercise their functions on such date as the Government may, by notification, specify in this behalf.

(4)

It shall be the duty of the first Vice-Chancellor to draft such statutes, ordinances and regulations as may be necessary and submit them to the respective authorities competent to deal with them for their disposal. Such statutes, ordinances and regulations when framed shall be published in the Tamil Nadu Government Gazette.

(5)

Notwithstanding anything contained in this Act and the statutes and until such time an authority is duly constituted, the first Vice-Chancellor may appoint any officer or constitute any committee temporarily to exercise and perform any of the powers and duties of such authority under this Act and the statutes.

66.

Librarian.

(1)

The Librarian shall be a whole time officer of the University appointed by the Syndicate on the recommendation of the selection committee constituted for the purpose for such period and on such terms and conditions as may be prescribed by the statutes.

(2)

The Librarian shall exercise such powers and perform such duties as may be assigned to him by the Syndicate.

67.

Special mode of appointment.

(1)

The Syndicate may invite a person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on his acceptance, appoint him to the post.

(2)

The Syndicate may appoint a teacher or any other member of the academic staff working in any other University or organisation for undertaking a joint project in accordance with the manner prescribed in the ordinances.

68.

Certain Acts not to apply in certain respects.

(1)

Subject to the provisions of sub-sections (2) to (7), the [Chennai University Act]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, 1923 the Madurai-Kamaraj University Act, 1965 (Tamil Nadu Act 15 of 1965), the Bharathiar University Act, 1981 (Tamil Nadu Act 1 of 1981) and [the Bharathidasan University Act, 1981 (Tamil Nadu Act 2 of 1981) and the

Manonmaniam Sundaranar University Act, 1990 (Tamil Nadu Act.31 of 1990)]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

(hereinafter in this section referred to as the "said University Acts") shall, with effect on and from the date of commencement of this Act, cease to apply in respect of colleges and institutions to which this Act applies.

(2)

Such cessor shall not affect, -

(a)

the previous operation of the said University Acts in respect of the colleges and institutions referred to in sub-section (1); or

(b)

any penalty, forfeiture or punishment incurred in respect of any offence committed against the said University Acts; or

(c)

any investigation, legal proceedings or in respect of such penalty, forfeiture or punishment and any such investigation, legal proceedings or remedy may be instituted, continued, or enforce and any such penalty, forfeiture or punishment may be imposed as if this Act had not been passed.

(3)

Notwithstanding anything contained in sub-section (1), all statutes, ordinances and regulations made under the said University Acts and in force on the date of commencement of this Act, shall, in so far as they are not inconsistent with the provisions of this Act, continue to be in force in the University area until they are replaced by the statutes, ordinances and regulations to be made under this Act.

(4)

Notwithstanding anything contained in this Act, the statutes, ordinances and regulations continued in force under sub-section (3) or made under this Act, every person who immediately before the date of commencement of this Act was a student of a college or institution within the University area affiliated to or approved by or maintained by the [Chennai] [Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)] University of Madurai-Kamaraj University, Bharathiar University, [Bharathidasan University and Manonmaniam Sundaranar University]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

by Act 1998 of the said Universities or was eligible to appeal, for any of the examination in law of the said Universities, shall be permitted to complete his course of study in the respective Universities, and the Tamil Nadu Dr. Ambedkar Law University shall make arrangements for the instruction, teaching and training for such students, for such period and in such manner as may be determined by the Tamil Nadu Dr. Ambedkar Law University in accordance with the course of study in the respective Universities and such students shall, during such period, be admitted to the examinations held or conducted by the respective Universities and the corresponding degree, diploma or other academic distinctions of the said Universities shall be conferred upon the qualified students on the result of such examinations by the said Universities.

(5)

All colleges specified in the Schedule within the University area and which are affiliated to, or recognized by the University of [Chennai]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, Madurai Kamaraj University, Bharathiar University, [Bharathidasan University and Manonmaniam Sundaranar University]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

courses of study for admission to the examination for degrees of the said Universities shall be deemed to be colleges affiliated to the University under this Act and the provisions. of this Act shall, as far as may be, apply accordingly.

(6)

(a)

On and from the date of the commencement of this Act, no University other than the Tamil Nadu Dr. Ambedkar Law University shall open and affiliate any college providing courses of study in law either at the under-graduate level or post-graduate level or for issuing any other diploma or certificate in law.

(b)

The Government may, on and from the date to be notified in this behalf, and in consultation with the Vice-Chancellor of the [University of Chennai], the Madurai Kamaraj University, the Bharathiar University or the [Bharathidasan University or the Manonmaniam Sundaranar University]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, may be, by order, transfer any department functioning in any such University offering courses of study in law at Post-Graduate level to the Tamil Nadu Dr. Ambedkar Law University.

(7)

All law college hostels within the University area which continue to be recognized by the said Universities immediately before the date of commencement of this Act shall be deemed to be hostels recognized by the Tamil Nadu Dr. Ambedkar Law University under this Act and the provisions of this Act shall, as far as may be, apply accordingly.

(8)

Subject to the provisions of sub-section (2), but without prejudice to the provisions of sub-sections (3) to (7), anything done or any action taken before the date of commencement of this Act under any provisions of the said University Acts in respect of any area to which the provisions of this Act extend shall be deemed to have been done or taken under corresponding provision of this Act and shall continue to have effect accordingly unless and until superseded by anything done or any action taken under the corresponding provision of this Act.

69.

Deemed affiliation of existing law colleges and transfer of properties and employees.

(1)

Notwithstanding anything contained in the [Chennai University Act]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

1923, the Madurai-Kamaraj University Act 1965, the Bharathiar University Act, 1981, the Bharathidasan University Act, 1981 [the Manonma-niam Sundaranar University Act, 1990,]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

or the statutes, ordinances, regulations and order made thereunder on the from the date of commencement of this Act, the law colleges specified in the Schedule shall be disaffiliated from the University, to which they were affiliated on the date immediately proceeding the date of commencement of this Act and shall be deemed to be affiliated to the Tamil Nadu Dr. Ambedkar Law University on the date of commencement of this Act and the provisions of this Act shall apply accordingly:

Provided that the deemed affiliated status of the Central Law College, Salem, shall be subject to the same terms and conditions under which it was affiliated to the University of [Chennai]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

Act 17 of 98.

(2)

On and from the date to be notified by the Government under clause (b) of sub-section (6) of section 68, all properties, whether movable or immovable, including lands, buildings, equipments, books and library and all rights of whatsoever kind owned by, or vested in, or held in trust by the said Universities in relation to the said department of the said Universities as well as liabilities, legally subsisting against that University in relation to the said department immediately before the said notified date, shall stand transferred to, and vest in, the Tamil Nadu Dr. Ambedkar Law University.

(3)

The Government may, at any time after the date of commencement of this Act, transfer to the Tamil Nadu Dr. Ambedkar Law University any of their lands for its use on such terms and conditions as they deem proper.

(4)

On and from the date to be notified by the Government under clause (b) of sub-section (6) of section 68, the Government may, after consulting the Vice-Chancellors of the University of [Chennai]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

Act, Madurai-Kamaraj University, Bharathiar University and [Bharathidasan University and Manonmaniam Sundaranar University Act 1990]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

and the Tamil Nadu Dr. Ambedkar Law University direct by general or special order that such of the employees of the Department of the University of Chennai, Madurai-Kamaraj University, Bharathiar University and [Bharathidasan

University and Manonmaniam Sundaranar University Act, 1990]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

referred to in clause (b) of sub-section (6) of section 68 as are specified in such order, shall stand allotted to, serve in connection with the affairs of the Tamil Nadu Dr. Ambedkar Law University with effect on and from such date as may be specified in such order:

Provided that no such order shall be issued in respect of any such employee without his consent for such allotment.

(5)

With effect on and from the date specified in the order under sub-section (4), the persons specified in such order shall become employees of the Tamil Nadu Dr. Ambedkar Law University and shall cease to be employees of the University of [Chennai]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, Madurai-Kamaraj University, Bharathiar University, [Bharathidasan University and Manonmaniam Sundaranar University]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, as the case maybe.

(6)

Every person referred to in sub-clause (4) shall hold office in the Tamil Nadu Dr. Ambedkar Law University by the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension or gratuity, if any, and other matters as he would have held the same on the date notified by the Government under clause (b) of sub-section (6) of section 68 or the date specified in the order under sub-section (4), as the case may be, as if this Act had not been passed.

(7)

The liability to pay pension and gratuity to the persons referred to in subsection (4) shall be the liability of the Tamil Nadu Dr. Ambedkar Law University.

70.

Transfer of accumulations in Provident Fund and other like funds.

(1)

The sums at the credit of the Provident Fund accounts of the persons referred to in sub-section (4) of section 69 as on date specified in the order under the said sub-section (4) shall be transferred to the University and the liability in respect of the said provident fund account shall be the liability of the University.

(2)

There shall be paid to the Tamil Nadu Dr. Ambedkar Law University out of the accumulation in the superannuation fund and other like funds, if any, of the University of [Chennai]

[Inserted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

, the Madurai-Kamaraj University, the Bharathiar University, the [Bharathidasan University and the Manonmaniam Sundaranar University]

[Substituted by Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

such amount as have been credited to the superannuation fund or other like funds, if any, on behalf of the persons referred to in sub-section (4) of section 69. The amount so paid shall form part of the superannuation fund or other like funds, if any, that may be established by the Tamil Nadu Dr. Ambedkar Law University for the benefit of its employees.

71.

Power to remove difficulties.

(1)

If any difficulty arises as to the first constitution or re-constitution of any authority of the University after the date of commencement of this Act or otherwise in giving effect to the provisions of this Act, the Government may, by notification, make such provisions not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for removing the difficulty :

Provided that no such notification shall be issued after the expiry of five years from the date of establishment of the University under section 3.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible, after

it is issued, be placed on the table of the Legislative Assembly and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such notification or the Assembly decides that the notification shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of any thing previously done under that notification.

Schedule

[See sections 1(3), 68(5) and 69(1)]

Law Colleges which are Deemed to be Colleges Affiliated to the Tamil Nadu Dr. Ambedkar Law University

Government Law Colleges

1. Dr. Ambedkar Government Law College, [Chennai]

[Substituted by Tamil Nadu Act 17 of 1998]

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2. Madurai Law College, Madurai.

3. Government Law College, Tiruchirappalli.

4. Government Law College, Coimbatore.

5. [Government Law College, Thirunelveli.]

[Added by section 6 of the Tamil Nadu Dr. Ambedkar Law University (Amendment) Act, 1998 (Tamil Nadu Act 17 of 1998)]

Private Law College

Central Law College, Salem.

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